

CONDITIONAL PARTIAL WAIVER OF CLAIMS FOR PROGRESS PAYMENT

TO WHOM IT MAY CONCERN: _____ has furnished certain labor, skills, materials and/or equipment to the _____ ("Project") located in _____ County, Colorado.

NOW, THEREFORE, Contractor, for and in consideration of the receipt of partial payment in the sum of \$_____ (the "Partial Payment"), the sufficiency of which is hereby does hereby waive, release, and relinquish any right it has to any and all other claims of any kind for anything related to the Project against: (a) the real property where the Project is located; (b) the improvements and other property located thereon; and (c) the owner of the Project and its title company and lenders, and each of their respective employees, officers and agents, but only to the extent of the partial payment received in good funds. This waiver and release shall only be effective as of the date the Partial Payment is made to Contractor, and only to the extent of the monies so paid in good funds on such date.

In order to induce payment to be made, Contractor certifies that it has paid or will pay all of its subcontractors, suppliers, and employees for all items owed for work covered by payments which Contractor has received for the Project prior to the date hereof. Provided payments are made pursuant to the Contract Documents, Contractor will defend and indemnify the owner of the Project, its lenders and title company for and from all costs and expenses, including attorneys' fees, incurred as a result of claims that any of Contractor's subcontractors, suppliers or employees have not been paid or relating to the enforcement of this Conditional Partial Waiver of Claims for Progress Payment. Contractor has executed this waiver voluntarily and with full knowledge of its rights under the law.

CONTRACTOR: _____

SIGNED: _____

PRINTED NAME: _____

TITLE: _____

Subscribed and sworn to before me by _____ on this _____ day of _____, 20____.

Witness my hand and official seal.

My commission expires: _____

Notary Public